

Form No.HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Crl. Misc. No.7151-B/2025.

Muhammad Irshad. Vs. The State, etc.

S.No. of order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel, where necessary
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11.03.2025. Mr. Zaqqa Ullah Sohi and Sajjad Mehmood Bhatti, Advocate with petitioner.
Mian Muhammad Naseem, Advocate for the complainant.
Mr. Tayyab Ahsan Siddiqui, Assistant Attorney General
Badar, SI/FIA, with record.

Petitioner (Muhammad Irshad) has sought pre-arrest bail in case bearing FIR No.C03/2023, dated 03.01.2023, for offence under Sections 406 and 408 PPC, registered with Federal Investigation Circle Gujranwala, after refusal of the same from the Court of learned Addl. Sessions Judge, Gujranwala vide order dated 28.01.2025.

2. The prosecution story unfolded in the FIR is that during the inquiry No.368/2022 P.S. Federal Investigation Agency Circle, Gujranwala it was transpired that Embassy of Islamic Republic of Pakistan at Oman referred a complaint, wherein the complainant Zulfiqar Ahmad son of Ehsan Ellahi alleged that he was running jewelry business in Muscat since, 1992 under the company name “Anwer Jewelry LLC” and petitioner/accused Muhammad Irshad son of Muhammad Latif was an employee as driver in his company for the last four years. It was further alleged that on 16.06.2022, he (complainant) handed over 26300 Omani Riyal for collecting the gold from Mutrah, a diamond ring having worth 600

Omani Riyal and a bank card, having had balance of 923 Omani Riyal to accused. On the same date, the accused instead of reaching the destination, transferred embezzled amount of Rs.1,793,504/- from Muscat into account No. 6010192515500015 of Bank of Punjab maintained by his wife Shamim Akher and Rs.1,793,504/- in to his own bank account No.3080010936 of National Bank of Pakistan. Afterwards, accused arrived Pakistan from Muscat by flight No.PK288 on 17.06.2022. Accused, out of embezzled amount, deposited cash amount of Rs.1,500,000/- in his own bank account. During the inquiry, the accused Muhammad Irshad was found involved in the alleged offence.

3. Learned counsel for petitioner, while conversing for the bail, maintained that petitioner was quite innocent; he was falsely involved and subjected to victimization by complainant in order to achieve some sinister motive; there was inordinate delay in lodgment of F.I.R., for which no plausible/reasonable explanation was offered; a crime report was already registered at Oman regarding the occurrence, as such second crime report of the same occurrence in Pakistan was not permissible, hence amount to double jeopardy, therefore, the very F.I.R. was liable to be quashed; Bank account of the petitioner was got freezed by the F.I.A. in flagrant violation of the law; no entrustment was made to the petitioner, as such ingredients of offences claimed against the petitioner were not made out; all the above weak and palpable circumstances, when are taken into consideration accumulatively, are sufficient to make present case that one of further inquiry; petitioner, being a respectable and law abiden citizen, was likely to

suffer irreparable loss at the hands of police in case his arrest is made.

4. Conversely, the learned Deputy Prosecutor General assisted by learned counsel for complainant opposed present petition vehemently and rigorously on variety of the grounds. They further added that petitioner was prima facie connected with the crime on the strength of the material collected by the Investigating Officer, as such he was not entitled to extra ordinary relief, which was available only for innocent people.

5. Pro and contra arguments heard. Record was perused with the able assistance rendered by learned counsels for both the sides.

6. Petitioner was under the allegation that he, being an employee of complainant at Oman was handed-over 26300 Omani Riyal for the collection of gold from Mutrah, a diamond ring worth 600 Omani Riyal and a Bank Card having balance of 923 Omani Riyal by complainant, but he instead of collecting the gold from concerned person transferred certain amounts into the bank account of his wife as well as into his own account and flew away to Pakistan.

7. Complainant reported the incident immediately to Pakistan embassy at Oman and the matter was onward referred to F.I.A. for legal action.

8. First of all I shall adhere to the objection raised by learned counsel for petitioner regarding the double jeopardy. He claimed with proud of strength that when a crime report was already got registered by the complainant at Masqat/Oman, there was no scope for lodging of second F.I.R. with respect to the same

occurrence in Pakistan. Above proposition was fully answered and settled in detail in a pronouncement by Hon'ble Islamabad High Court in a case reported as **(2022 P.Cr.L.J 1511)**. In the above case murder of one Dr. Imran was committed in U.K. and all the accused persons therein were citizens of Pakistan. The Court was pleased to hold that Section 188 of Cr.P.C. provides that courts in Pakistan had jurisdiction to try the accused and punish them accordingly with the proviso that such accused shall have the protection of "Double Jeopardy" and permission of the Federal Government shall be obtained before proceeding with the accused. The Hon'ble High Court further ruled that above sanction was just a procedural requirement and even its violation was of no legal consequence.

9. In order to further elaborate the above question, I think it appropriate to have a look of Section 3 of Pakistan Penal Code, 1860, read with Section 188 and Section 403 of Cr.P.C., which are being produced below for the facility of reference.

Section 3 PPC

3. Punishment of offences committed beyond, but which by law may be tried within, Pakistan.- Any person liable, by any [Pakistan Law], to be tried for an offence committed beyond [Pakistan] shall be dealt with according to the provision of this Code for any act committed beyond [Pakistan] in the same manner as if such act had been committed within [Pakistan].

Section 188 Cr.P.C.

188. Liability for offences committed outside Pakistan.- When a citizen of Pakistan commits an offence at any place without and beyond the limits of Pakistan, or

When a servant of the State (whether a citizen of Pakistan or not) commits an offence in a tribal area, or

When any person commits an offence on any ship or aircraft registered in Pakistan wherever it may be,

He may be dealt with in respect of such offence as if it had been committed at any place within Pakistan at which he may be found:

Section 403 of Cr.P.C.

403. Person once convicted or acquitted not to be tried for same offence.- (1) A person who has once been tried by a Court of competent jurisdiction for an offence and convicted or acquitted of such offence shall, while such conviction or acquittal remains in force, not be liable to be tried again for the same offence, nor on the same facts for any other offence for which a different charge from the one made against him might have been made under Section 236, or for which he might have been convicted under Section 237.

(2) A person acquitted or convicted of any offence may be afterwards tried for any distinct offence for which a separate charge might have been made against him on the former trial under Section 235, sub-section (1).

(3) A person convicted of any offence constituted by any act causing consequences which, together with such act, constituted a different offence from that of which he was convicted, may be afterwards tried for such last-mentioned offence, if the consequences had not happened, or were not known to the Court to have happened at the time when he was convicted.

(4) A person acquitted or convicted of any offence constituted by any act may, notwithstanding such

acquittal or conviction, be subsequently charged with, and tried for, any other offence constituted by the same act which he may have committed if the Court by which he was first tried was not competent to try the offence with which he is subsequently charged.

(5) Nothing in this section shall affect the provisions of Section 26 of the General Clauses Act, 1897 (X of 1897), or section 188 of this Code.

10. Combined study and critical analysis of the above provisions leads to an inference that if a person commits any offence in a foreign country, which is also an offence under the Pakistan Penal Code, he may be tried or convicted in Pakistan in the same manner as if the offence was committed within Pakistan.

11. Section 188 of Cr.P.C. does not create any bar to the registration of a crime report under section 154 of Cr.P.C. in Pakistan for an offence committed by a citizen of Pakistan abroad. If any reference in this regard is required that can be had from (2011 YLR 2882).

12. So far as Section 403 of Cr.P.C. is concerned, the protection available there under can be claimed by an accused only if he has been tried for a crime by a court of competent jurisdiction and he is thereafter convicted or acquitted of the charge and that conviction/acquittal remains intact.

13. In the case in hand only a crime report was registered against the petitioner at Masqat/Oman. He was neither tried nor convicted or acquitted of the charge there. He escaped from Oman/Musqat and

entered into the limits of Pakistan and was arrested by the F.I.A. authorities.

14. Since case against the petitioner was just at initial stage of investigation at Oman, hence he cannot seek the help of Section 403 of Cr.P.C.

15. Crux of the above discussion was that inquiry/ investigation, arrest and trial of petitioner in Pakistan is legal and valid for all the purposes, therefore, objection raised by learned counsel for petitioner is devoid of any force, hence rejected by me outrightly.

16. Record speaks that when petitioner committed embezzlement in Masqat/Oman, he immediately transferred certain amounts into his bank account at Pakistan and bank account of his wife. Petitioner, being an employee of complainant was entrusted with cash, diamond ring and bank card, which he misappropriated and converted the same to his own use in flagrant violation of his duties as an employee. He breached the trust of his employer/complainant. Ingredients of offence of criminal breach of trust prescribed in section 405 of PPC were fully attracted. Whole of the documentary evidence floated on the surface during the investigation was fully connecting him with the crime alleged against him. He failed to dislodge his prima involvement in the offence. All the circumstances were encircling him from all the sides. F.I.R. was presenting a dreadful picture. He failed to show any malafide or ulterior motive on the part of complainant for his false implication. Extra ordinary relief, being available only for innocent people, cannot be extended in favour of the petitioner.

17. Another aspect of the matter has escaped the notice of Investigating Officer, as such I think it appropriate to adhere to the same. The amount was transferred by petitioner from Masqat/Oman to Pakistan into his own bank account as well as the bank account of his wife with the knowledge that it was proceeds of crime, as such the relevant offences under the Anti Money Laundering Act, 2010 were also prima facie made out against the petitioner. Investigating Officer of the case is supposed to look into the above aspect of the case.

18. In the sequel to above discussion, the present petition has no force. Ad-interim pre-arrest bail already allowed to the petitioner stands withdrawn.

19. Petition **dismissed**.

(Tanveer Ahmad Sheikh)
Judge

Approved for reporting.

Judge

Shahzad Ahmad Nasir *